

SENATE No. 1056

The Commonwealth of Massachusetts

PRESENTED BY:

Cynthia Stone Creem

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to amend the definition of hate crime.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Cynthia Stone Creem</i>	<i>Norfolk and Middlesex</i>	
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>2/5/2025</i>

SENATE No. 1056

By Ms. Creem, a petition (accompanied by bill, Senate, No. 1056) of Cynthia Stone Creem and Michael J. Barrett for legislation to amend the definition of hate crime. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 924 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to amend the definition of hate crime.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 39 of chapter 265 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended, in line 2, by striking out the words “of a person” and
3 inserting in place thereof the following words:- “of another”

4 SECTION 2. Said section 39 of chapter 265 is hereby further amended, in line 3, by
5 striking out the words “such person” and inserting in place thereof the following words:- “a
6 person.”

7 SECTION 3. Said section 39 of said chapter 265 is hereby further amended by inserting
8 at the end thereof the following paragraph:-

9 “If restitution is ordered under the provisions of this section for purposes of repairing the
10 damage done to the real or personal property with intent to intimidate a person because of such

- 11 person's race, color, religion, national origin, sexual orientation, gender identity, or disability,
- 12 such restitution shall be used to repair the damage done to the property."